

GINSBURG, J., dissenting

Batterton sought punitive damages, alleging that Dutra's breach was wanton and willful.

Dutra moved to strike or dismiss Batterton's punitive damages request. The District Court denied the motion, 2014 WL 12538172, *2 (CD Cal., Dec. 15, 2014), and the Ninth Circuit, accepting an interlocutory appeal, affirmed, 880 F. 3d 1089. Longstanding Ninth Circuit precedent, the court observed, recognized the availability of punitive damages in seamen's actions for unseaworthiness. *Id.*, at 1091 (citing *Evich v. Morris*, 819 F. 2d 256, 258 (1987)). *Miles*, 498 U. S., at 29–33, which held that loss-of-society damages are not available in survivors' actions for unseaworthiness resulting in a seaman's wrongful death, the court observed, did not undermine that precedent. 880 F. 3d, at 1093–1096. “Whatever room might [have] be[en] left to support broadening *Miles* to cover punitive damages” sought by a seaman, the Ninth Circuit said, “was cut off by [this] Court's decision in *Atlantic Sounding*,” in which this Court, recognizing that “historically, punitive damages have been available and awarded in general maritime actions,” held that such damages are available in seamen's suits for maintenance and cure. *Id.*, at 1095 (quoting *Atlantic Sounding*, 557 U. S., at 407; alteration omitted). Punitive damages, the Ninth Circuit concluded, are similarly available when a seaman sues for unseaworthiness under general maritime law.

II

I turn now to an examination of *Miles* and *Atlantic Sounding* closer than the attention accorded those decisions by the Court.

Miles, decided in 1990, addressed this question: In a wrongful-death action premised on unseaworthiness, may a deceased seaman's parent recover damages for loss of society? 498 U. S., at 21. As the Court explained in *Miles*, historically, general maritime law did not recognize a cause of action for wrongful death. *Id.*, at 23 (citing *The Harrisburg*,

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119 U. S. 199 (1886)). But since the late 19th century, every State had adopted a statutory wrongful-death cause of action. *Miles*, 498 U. S., at 23. And in two statutes, Congress had provided for wrongful-death recoveries in maritime cases. *Ibid.* First, the Jones Act, 46 U. S. C. § 30104, provided a right of action for the survivor of a seaman killed in the course of his employment. Second, the Death on the High Seas Act (DOHSA), 46 U. S. C. § 30301 *et seq.*, provided a right of action for the survivor of anyone killed “by wrongful act, neglect, or default . . . on the high seas.” § 30302; *Miles*, 498 U. S., at 24. But the Jones Act and DOHSA left some wrongful deaths at sea without a remedy. See *Miles*, 498 U. S., at 25–26.³ To fill gaps in this statutory regime, and in light of legislative abrogation of the common-law disallowance of wrongful-death claims, the Court in *Moragne v. States Marine Lines, Inc.*, 398 U. S. 375, 409 (1970), recognized a general maritime cause of action for the wrongful death of a longshoreman. See also *Miles*, 498 U. S., at 26–30 (claim for wrongful death is also available to seamen’s survivors).

After recounting this history, the *Miles* Court addressed the damages relief available for maritime wrongful death. Because “Congress and the States ha[d] legislated extensively in” the field of maritime law, the Court stated, “admiralty court[s] should look primarily to these legislative en-

³These were the unprovided-for cases: “First, in territorial waters, general maritime law allowed a remedy for unseaworthiness resulting in injury, but not for death. Second, DOHSA allowed a remedy for death resulting from unseaworthiness on the high seas, but general maritime law did not allow such recovery for a similar death in territorial waters. Finally, . . . in those States whose statutes allowed a claim for wrongful death resulting from unseaworthiness, recovery was available for the death of a longshoreman due to unseaworthiness, but not for the death of a Jones Act seaman. This was because wrongful death actions under the Jones Act are limited to negligence, and the Jones Act pre-empts state law remedies for the death or injury of a seaman.” *Miles v. Apex Marine Corp.*, 498 U. S. 19, 26 (1990) (citation omitted).

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actments for policy guidance.” *Id.*, at 27. Congress had expressly limited damages recoverable under DOHSA to “pecuniary loss” sustained by the decedent’s survivor. *Id.*, at 31 (citing 46 U. S. C. App. § 762, recodified at § 30303; emphasis deleted). And the Jones Act adopted the substantive provisions of the Federal Employers Liability Act, 45 U. S. C. § 51 *et seq.*, which the Court construed to confine wrongful-death damages to “pecuniary loss.” *Miles*, 498 U. S., at 32. The *Miles* Court reasoned that loss-of-society damages were nonpecuniary, that such damages could not be recovered under DOHSA or the Jones Act, and that it would “be inconsistent with [the Court’s] place in the constitutional scheme . . . to sanction more expansive remedies” under general maritime law. *Miles*, 498 U. S., at 31–33.⁴

Some 19 years after *Miles*, in *Atlantic Sounding*, this Court held that punitive damages are available in actions for maintenance and cure under general maritime law. 557 U. S., at 408. *Atlantic Sounding*’s reasoning had four components. First, the Court observed, punitive damages had a long common-law pedigree. *Id.*, at 409–410. Second, the “general rule that punitive damages were available at common law extended to claims arising under federal maritime law.” *Id.*, at 411; see *id.*, at 411–412. Third, “[n]othing in maritime law undermine[d] the applicability of this general rule in the maintenance and cure context,” notwithstanding slim evidence that punitive damages were historically awarded in maintenance and cure actions. *Id.*, at 412; see *id.*, at 412–415, and n. 4. Finally, neither the Jones Act nor

⁴The *Miles* Court relied on comparable reasoning in denying the deceased seaman’s estate, which had brought a survival action, the right to recover future earnings. See *id.*, at 33–37. Under “the traditional maritime rule,” “there [wa]s no survival of unseaworthiness claims.” *Id.*, at 34. The Court declined to decide whether to recognize a general maritime survival right, however, because, even if such a right were recognized, it would not support recovery of lost future income. *Ibid.* This damages limitation followed from the Jones Act, DOHSA, and most States’ laws, which did not permit recovery of such damages. See *id.*, at 35–36.

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any other statute indicated that Congress sought to displace the presumption that remedies generally available under the common law are available for maritime claims. While the Jones Act armed seamen with a statutory action for negligence attributable to a vessel operator, that remedy, *Atlantic Sounding* noted, did not curtail pre-existing maritime causes of action and remedies. *Id.*, at 415–418. The *Atlantic Sounding* Court rejected as “far too broad” the argument that the remedies available under general maritime law were confined to those available under the Jones Act or DOHSA. *Id.*, at 418–419.

The *Atlantic Sounding* inquiries control this case. As in *Atlantic Sounding*, “both the general maritime cause of action”—here, unseaworthiness—“and the remedy (punitive damages) were well established before the passage of the Jones Act.” 557 U. S., at 420; *Mitchell v. Trawler Racer, Inc.*, 362 U. S. 539, 544 (1960); *The Osceola*, 189 U. S. 158, 175 (1903). And, unlike the maritime wrongful-death action at issue in *Miles*, Batterton’s claim of unseaworthiness resulting in personal injury was not created to fill gaps in a statutory scheme. See *Atlantic Sounding*, 557 U. S., at 420; *Miles*, 498 U. S., at 27, 36. The damages available for Batterton’s unseaworthiness claim, *Atlantic Sounding* therefore signals, need not track those available under the Jones Act. See 557 U. S., at 424, n. 12.

III

Applying *Atlantic Sounding*’s test, see *supra*, at 381–382, punitive damages are not categorically barred in unseaworthiness actions. *Atlantic Sounding* itself answers the first two inquiries. See *supra*, at 381. “Punitive damages have long been an available remedy at common law for wanton, willful, or outrageous conduct.” 557 U. S., at 409; see *id.*, at 409–410. And “[t]he general rule that punitive damages [are] available at common law extended to claims arising under federal maritime law.” *Id.*, at 411; see *id.*, at 411–412. As

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next explained, the third and fourth components of *Atlantic Sounding*'s test are also satisfied.

A

Atlantic Sounding asks, third, whether anything in maritime law “undermines the applicability [to the maritime action at issue] of th[e] general rule” that punitive damages are available under general maritime law. *Id.*, at 412. True, there is no evidence that courts awarded punitive damages for unseaworthiness before the mid-20th century. See *ante*, at 370–372. But neither is there evidence that punitive damages were *unavailable* in unseaworthiness actions. Tr. of Oral Arg. 17.

Contrary to the Court's assertion, evidence of the availability of punitive damages for maintenance and cure was not “central to our decision in *Atlantic Sounding*.” *Ante*, at 373. Far from it. “[A] search for cases in which punitive damages were awarded for the willful denial of maintenance and cure . . . yields very little.” *Atlantic Sounding*, 557 U. S., at 430 (ALITO, J., dissenting). The Court in *Atlantic Sounding* invoked historical evidence about punitive damages in maintenance and cure actions, “strikingly slim” though it was, *id.*, at 431, only to underscore this point: Without a showing that punitive damages were unavailable, the generally applicable common-law rule allowing punitive damages should not be displaced. See *id.*, at 412–415 (majority opinion). Here, too, the absence of evidence that punitive damages were unavailable in unseaworthiness cases supports adherence to the general common-law rule permitting punitive damages.

B

Atlantic Sounding asks fourth: Has Congress “enacted legislation departing from th[e] common-law understanding” that punitive damages are generally available? See *id.*, at 415. Dutra contends that unseaworthiness claims and claims under the Jones Act are “simply two paths to compen-

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sation for the same injury.” Brief for Petitioner 19–20 (emphasis deleted). Positing that punitive damages are unavailable under the Jones Act,⁵ Dutra concludes they are likewise unavailable in unseaworthiness suits. *Id.*, at 17. See also *ante*, at 372–374. Dutra’s argument is unavailing, for the Jones Act does not preclude the award of punitive damages in unseaworthiness cases.

As noted, the Jones Act provides a cause of action for a seaman injured by his or her employer’s negligence. 46 U.S.C. §30104. Congress passed the Act “primarily to overrule *The Osceola*, [189 U.S. 158,] in which this Court prohibited a seaman or his family from recovering for injuries or death suffered due to his employers’ negligence.” *Atlantic Sounding*, 557 U.S., at 415. The Jones Act was intended to “enlarge th[e] protection” afforded to seamen, “not to narrow it.” *The Arizona v. Anelich*, 298 U.S. 110, 123 (1936). Accordingly, the Jones Act did not provide an “exclusive remedy” for seamen’s injuries; instead, it “preserve[d]” and supplemented “common-law causes of action.” *Atlantic Sounding*, 557 U.S., at 416–417. As *Miles* itself recognized, the Jones Act “d[id] not disturb seamen’s general maritime claims for injuries resulting from unseaworthiness.” 498 U.S., at 29.

When the Jones Act was enacted, unseaworthiness and negligence were “discrete concepts”: Unseaworthiness related “to the structure of the ship and the adequacy of [its] equipment and furnishings,” while negligence concerned “the direction and control of operations aboard ship.” G. Gilmore & C. Black, *Law of Admiralty* §6–3, p. 277 (2d ed. 1975). Because these actions were distinct, it is improbable that, by enacting the Jones Act, Congress meant to limit the remedies available in unseaworthiness cases. Though unseaworthiness and Jones Act negligence now “significant[ly]

⁵This Court has not decided whether punitive damages are available under the Jones Act. See *Atlantic Sounding Co. v. Townsend*, 557 U.S. 404, 424, n. 12 (2009) (reserving the question).

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overlap,” *ante*, at 367, that overlap resulted primarily from mid-20th-century judicial decisions expanding the scope of unseaworthiness liability. See *Mitchell*, 362 U. S., at 547–550.⁶ Those decisions do not so much as hint that Congress, in enacting the Jones Act, intended to cabin the relief available for unseaworthiness. Even today, unseaworthiness and Jones Act negligence are “not identical.” 2 R. Force & M. Norris, *The Law of Seamen* §27:25, p. 27–61 (5th ed. 2003).⁷ The persistent differences between unseaworthiness and Jones Act claims weigh against inserting into general maritime law damages limitations that may be applicable to Jones Act suits. See *supra*, at 384, n. 5.⁸

⁶In particular, this Court held that a shipowner’s duty to provide a seaworthy vessel was “absolute,” thereby rendering unseaworthiness a strict-liability tort. *Seas Shipping Co. v. Sieracki*, 328 U. S. 85, 94–95 (1946); *Mahnich v. Southern S. S. Co.*, 321 U. S. 96, 100–101 (1944); see 1B Benedict on Admiralty §23, pp. 3–12 to 3–16 (7th rev. ed. 2018). In addition, courts broadened the range of conditions that could render a vessel unseaworthy. *Id.*, §23, at 3–16 to 3–19.

⁷Unseaworthiness is a strict-liability tort, *ante*, at 366–367; the Jones Act requires proof of negligence, *Lewis v. Lewis & Clark Marine, Inc.*, 531 U. S. 438, 441 (2001). Unseaworthiness claims run against the vessel’s owner, *Mahnich*, 321 U. S., at 100; Jones Act claims are brought against the seaman’s “employer,” §30104. Injury caused by the negligent act or omission of a fit fellow crewmember may be actionable under the Jones Act but is not ground for an unseaworthiness suit. 1B Benedict on Admiralty §23, at 3–34 to 3–38; see *Usner v. Luckenbach Overseas Corp.*, 400 U. S. 494 (1971). And a vessel owner is liable for unseaworthiness only when the unseaworthy condition proximately caused the plaintiff’s injury; under the Jones Act, a plaintiff can prevail upon showing the “slight[est]” causal connection between the defendant’s conduct and the plaintiff’s injury. 2 Force & Norris, *The Law of Seamen* §27:25, at 27–62 to 27–63. See also *id.*, §27:2, at 27–7, and n. 6 (the duty to provide a seaworthy vessel may run to “seamen” who do not qualify as such under the Jones Act).

⁸The Court recognizes “that the general maritime law need not be static,” but would confine changes in that law to those needed to align it with statutory law. *Ante*, at 375, n. 9. As just stated, however, *supra*, at 384–385, the Jones Act was intended to augment, not to cabin, relief available to seamen.

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The Court observes that a plaintiff may not recover twice for the same injury under the Jones Act and unseaworthiness. *Ante*, at 368. True enough. But the Court does not explain why a bar to double recovery of compensatory damages should affect the availability of a single award of punitive damages. Notably, punitive damages are not awarded to compensate the plaintiff; their office is to punish the defendant and deter misconduct. See *Exxon*, 554 U. S., at 492; W. Keeton, D. Dobbs, R. Keeton, & D. Owen, *Prosser and Keeton on Law of Torts* §2, p. 9 (5th ed. 1984). There is thus no tension between preventing double recovery of compensatory damages and allowing the recovery, once, of punitive damages.

IV

Finally, the Court takes up policy arguments against the availability of punitive damages in unseaworthiness actions. *Ante*, at 374–377. The Court, however, has long recognized the general availability of punitive damages under maritime law. *E. g.*, *Atlantic Sounding*, 557 U. S., at 411–412; *Exxon*, 554 U. S., at 489–490; *The Amiable Nancy*, 3 Wheat. 546, 558 (1818).

Punitive damages serve to deter and punish “lawless misconduct.” *Ibid.* The imperative of countering a “heightened threat of harm,” *Exxon*, 554 U. S., at 490, is especially pressing with regard to sailors, who face unique “hazards in the ship’s service,” *Harden v. Gordon*, 11 F. Cas. 480, 483 (No. 6,047) (CC Me. 1823) (Story, J.). These dangers, more than paternalistic 19th-century attitudes towards sailors, see *ante*, at 376–377, account for the Court’s “‘special solicitude’” for “those who undertake to ‘venture upon hazardous and unpredictable sea voyages.’” *Air & Liquid Systems Corp. v. DeVries*, 586 U. S. 446, 456 (2019) (quoting *American Export Lines, Inc. v. Alvez*, 446 U. S. 274, 285 (1980)).

Dutra and the Court warn that allowing punitive damages in unseaworthiness actions could impair maritime commerce. Brief for Petitioner 33–34; *ante*, at 376. But punitive

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damages have been available in maintenance and cure cases in all Circuits for the last decade, *Atlantic Sounding*, 557 U. S. 404, and in unseaworthiness cases in some Circuits for longer, see *Self v. Great Lakes Dredge & Dock Co.*, 832 F. 2d 1540, 1550 (CA11 1987); *Evich*, 819 F. 2d, at 258. No tidal wave has overwhelmed commerce in those Circuits.

Permitting punitive damages for unseaworthiness, the Court further urges, would create “bizarre disparities.” *Ante*, at 376. I see no “bizarre disparit[y]” in allowing an injured sailor to seek remedies unavailable to survivors of deceased seamen. See Keeton, *supra*, §127, at 949, 951 (state wrongful-death statutes frequently limit survivors’ recoveries to pecuniary damages). Nor is it “bizarre” to permit recovery of punitive damages against a shipowner “for injuries due to unseaworthiness of the vessel.” *The Arizona*, 298 U. S., at 120. Exposure to such damages helps to deter wrongdoing, particularly when malfeasance is “hard to detect.” *Exxon*, 554 U. S., at 494. If there is any “bizarre disparit[y],” it is the one the Court today creates: Punitive damages are available for willful and wanton breach of the duty to provide maintenance and cure, but not for similarly culpable breaches of the duty to provide a seaworthy vessel.

* * *

For the reasons stated, I would affirm the Court of Appeals’ judgment.

Syllabus

IANCU, UNDER SECRETARY OF COMMERCE FOR
INTELLECTUAL PROPERTY AND DIRECTOR, PAT-
ENT AND TRADEMARK OFFICE *v.* BRUNETTICERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE FEDERAL CIRCUIT

No. 18–302. Argued April 15, 2019—Decided June 24, 2019

Respondent Erik Brunetti sought federal registration of the trademark FUCT. The Patent and Trademark Office (PTO) denied his application under a provision of the Lanham Act that prohibits registration of trademarks that “[c]onsist[] of or comprise[] immoral[] or scandalous matter,” 15 U.S.C. § 1052(a). Brunetti brought a First Amendment challenge to the “immoral or scandalous” bar in the Federal Circuit, which invalidated the provision.

Held: The Lanham Act’s prohibition on registration of “immoral[] or scandalous” trademarks violates the First Amendment.

In *Matal v. Tam*, 582 U.S. 218, this Court declared unconstitutional the Lanham Act’s ban on registering marks that “disparage” any “person[] , living or dead.” § 1052(a). A divided Court agreed on two propositions. First, if a trademark registration bar is viewpoint-based, it is unconstitutional. And second, the disparagement bar was viewpoint-based.

The “immoral or scandalous” bar similarly discriminates on the basis of viewpoint and so collides with this Court’s First Amendment doctrine. Expressive material is “immoral” when it is “inconsistent with rectitude, purity, or good morals”; “wicked”; or “vicious.” So the Lanham Act permits registration of marks that champion society’s sense of rectitude and morality, but not marks that denigrate those concepts. And material is “scandalous” when it “giv[es] offense to the conscience or moral feelings”; “excite[s] reprobation”; or “call[s] out condemnation.” So the Lanham Act allows registration of marks when their messages accord with, but not when their messages defy, society’s sense of decency or propriety. The statute, on its face, distinguishes between two opposed sets of ideas: those aligned with conventional moral standards and those hostile to them; those inducing societal nods of approval and those provoking offense and condemnation. This facial viewpoint bias in the law results in viewpoint-discriminatory application. The PTO has refused to register marks communicating “immoral” or “scandalous” views about (among other things) drug use, religion, and terrorism.

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But all the while, it has approved registration of marks expressing more accepted views on the same topics.

The Government says the statute is susceptible of a limiting construction that would remove its viewpoint bias. The Government's idea is to narrow the statutory bar to "marks that are offensive [or] shocking[]" because of their mode of expression, independent of any views that they may express," which would mostly restrict the PTO to refusing marks that are lewd, sexually explicit, or profane. But this Court cannot accept the Government's proposal, because the statute says something markedly different. The "immoral or scandalous" bar does not draw the line at lewd, sexually explicit, or profane marks. Nor does it refer only to marks whose "mode of expression," independent of viewpoint, is particularly offensive. To cut the statute off where the Government urges is not to interpret the statute Congress enacted, but to fashion a new one. And once the "immoral or scandalous" bar is interpreted fairly, it must be invalidated. Pp. 392–399.

877 F. 3d 1330, affirmed.

KAGAN, J., delivered the opinion of the Court, in which THOMAS, GINSBURG, ALITO, GORSUCH, and KAVANAUGH, JJ., joined. ALITO, J., filed a concurring opinion, *post*, p. 399. ROBERTS, C. J., *post*, p. 400, and BREYER, J., *post*, p. 401, filed opinions concurring in part and dissenting in part. SOTOMAYOR, J., filed an opinion concurring in part and dissenting in part, in which BREYER, J., joined, *post*, p. 409.

Deputy Solicitor General Stewart argued the cause for petitioner. With him on the briefs were *Solicitor General Francisco, Assistant Attorney General Hunt, Frederick Liu, Mark R. Freeman, Daniel Tenny, Joshua M. Salzman, Sarah Harris, Thomas W. Krause, Christina J. Hieber, Thomas L. Casagrande, Mary Beth Walker, and Molly R. Silfen.*

John R. Sommer argued the cause for respondent. With him on the brief were *Megan E. Gray and Devon A. Beckwith.**

**Kurt M. Anderson, pro se*, filed an *amicus curiae* brief urging reversal.

Briefs of *amici curiae* urging affirmance were filed for the American Civil Liberties Union et al. by *David D. Cole, Esha Bhandari, and Arthur B. Spitzer*; for the Cato Institute et al. by *Ilya Shapiro*; for the International Trademark Association by *David H. Bernstein, Jeremy Feigelson,*

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JUSTICE KAGAN delivered the opinion of the Court.

Two Terms ago, in *Matal v. Tam*, 582 U. S. 218 (2017), this Court invalidated the Lanham Act’s bar on the registration of “disparag[ing]” trademarks. 15 U. S. C. § 1052(a). Although split between two non-majority opinions, all Members of the Court agreed that the provision violated the First Amendment because it discriminated on the basis of viewpoint. Today we consider a First Amendment challenge to a neighboring provision of the Act, prohibiting the registration of “immoral[] or scandalous” trademarks. *Ibid.* We hold that this provision infringes the First Amendment for the same reason: It too disfavors certain ideas.

I

Respondent Erik Brunetti is an artist and entrepreneur who founded a clothing line that uses the trademark FUCT. According to Brunetti, the mark (which functions as the clothing’s brand name) is pronounced as four letters, one after the other: F-U-C-T. See Brief for Respondent 1. But you might read it differently and, if so, you would hardly be alone. See Tr. of Oral Arg. 5 (describing the brand name as “the equivalent of [the] past participle form of a well-known word of profanity”). That common perception caused difficulties for Brunetti when he tried to register his mark with the U. S. Patent and Trademark Office (PTO).

Under the Lanham Act, the PTO administers a federal registration system for trademarks. See 15 U. S. C. §§ 1051,

Pooja A. Boisture, and *Claudia Ray*; for the Pacific Legal Foundation by *Caleb R. Trotter*, *Joshua P. Thompson*, and *Daniel M. Ortner*; for The Rutherford Institute by *Megan L. Brown*, *Scott B. Wilkens*, and *John W. Whitehead*; and for Simon Tam by *Stuart Banner*.

Briefs of *amici curiae* were filed for the American Intellectual Property Law Association by *Theodore H. Davis, Jr.*, and *Sheldon H. Klein*; for the New York Intellectual Property Law Association by *Michael Carl Cannata*, *Frank Misiti*, *Stephen J. Smirti, Jr.*, *Dyan Finguerra-DuCharme*, *William Thomashower*, *Robert J. Rando*, and *Kathleen E. McCarthy*; and for Barton Beebe et al. by *William M. Jay* and *Joshua J. Bone*.

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1052. Registration of a mark is not mandatory. The owner of an unregistered mark may still use it in commerce and enforce it against infringers. See *Tam*, 582 U. S., at 225. But registration gives trademark owners valuable benefits. For example, registration constitutes “prima facie evidence” of the mark’s validity. § 1115(a). And registration serves as “constructive notice of the registrant’s claim of ownership,” which forecloses some defenses in infringement actions. § 1072. Generally, a trademark is eligible for registration, and receipt of such benefits, if it is “used in commerce.” § 1051(a)(1). But the Act directs the PTO to “refuse[] registration” of certain marks. § 1052. For instance, the PTO cannot register a mark that “so resembles” another mark as to create a likelihood of confusion. § 1052(d). It cannot register a mark that is “merely descriptive” of the goods on which it is used. § 1052(e). It cannot register a mark containing the flag or insignia of any nation or State. See § 1052(b). There are five or ten more (depending on how you count). And until we invalidated the criterion two years ago, the PTO could not register a mark that “disparage[d]” a “person[], living or dead.” § 1052(a); see *Tam*, 582 U. S. 218.

This case involves another of the Lanham Act’s prohibitions on registration—one applying to marks that “[c]onsist[] of or comprise[] immoral[] or scandalous matter.” § 1052(a). The PTO applies that bar as a “unitary provision,” rather than treating the two adjectives in it separately. *In re Brunetti*, 877 F. 3d 1330, 1336 (CA Fed. 2017); Brief for Petitioner 6 (stating that the PTO “has long treated the two terms as composing a single category”). To determine whether a mark fits in the category, the PTO asks whether a “substantial composite of the general public” would find the mark “shocking to the sense of truth, decency, or propriety”; “giving offense to the conscience or moral feelings”; “calling out for condemnation”; “disgraceful”; “offensive”; “disreputable”; or “vulgar.” 877 F. 3d, at 1336 (internal quo-

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tation marks omitted); see Brief for Petitioner 6 (agreeing that the PTO “generally defines” the category in that way).

Both a PTO examining attorney and the PTO’s Trademark Trial and Appeal Board decided that Brunetti’s mark flunked that test. The attorney determined that FUCT was “a total vulgar” and “therefore[] unregistrable.” App. 27–28. On review, the Board stated that the mark was “highly offensive” and “vulgar,” and that it had “decidedly negative sexual connotations.” App. to Pet. for Cert. 59a, 64a–65a. As part of its review, the Board also considered evidence of how Brunetti used the mark. It found that Brunetti’s website and products contained imagery, near the mark, of “extreme nihilism” and “anti-social” behavior. *Id.*, at 64a. In that context, the Board thought, the mark communicated “misogyny, depravity, [and] violence.” *Ibid.* The Board concluded: “Whether one considers [the mark] as a sexual term, or finds that [Brunetti] has used [the mark] in the context of extreme misogyny, nihilism or violence, we have no question but that [the term is] extremely offensive.” *Id.*, at 65a.

Brunetti then brought a facial challenge to the “immoral or scandalous” bar in the Court of Appeals for the Federal Circuit. That court found the prohibition to violate the First Amendment. As usual when a lower court has invalidated a federal statute, we granted certiorari. 586 U. S. 1063 (2019).

II

This Court first considered a First Amendment challenge to a trademark registration restriction in *Tam*, just two Terms ago. There, the Court declared unconstitutional the Lanham Act’s ban on registering marks that “disparage” any “person[], living or dead.” § 1052(a). The eight-Justice Court divided evenly between two opinions and could not agree on the overall framework for deciding the case. (In particular, no majority emerged to resolve whether a Lanham Act bar is a condition on a government benefit or a simple restriction on speech.) But all the Justices agreed on

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two propositions. First, if a trademark registration bar is viewpoint-based, it is unconstitutional. See 582 U. S., at 223, 243–244 (opinion of ALITO, J.); *id.*, at 247–248, 251 (opinion of Kennedy, J.). And second, the disparagement bar was viewpoint-based. See *id.*, at 223, 243–244 (opinion of ALITO, J.); *id.*, at 248–251 (opinion of Kennedy, J.).

The Justices thus found common ground in a core postulate of free speech law: The government may not discriminate against speech based on the ideas or opinions it conveys. See *Rosenberger v. Rector and Visitors of Univ. of Va.*, 515 U. S. 819, 829–830 (1995) (explaining that viewpoint discrimination is an “egregious form of content discrimination” and is “presumptively unconstitutional”). In Justice Kennedy’s explanation, the disparagement bar allowed a trademark owner to register a mark if it was “positive” about a person, but not if it was “derogatory.” *Tam*, 582 U. S., at 249. That was the “essence of viewpoint discrimination,” he continued, because “[t]he law thus reflects the Government’s disapproval of a subset of messages it finds offensive.” *Ibid.* JUSTICE ALITO emphasized that the statute “denie[d] registration to any mark” whose disparaging message was “offensive to a substantial percentage of the members of any group.” *Id.*, at 243. The bar thus violated the “bedrock First Amendment principle” that the government cannot discriminate against “ideas that offend.” *Id.*, at 223. Slightly different explanations, then, but a shared conclusion: Viewpoint discrimination doomed the disparagement bar.

If the “immoral or scandalous” bar similarly discriminates on the basis of viewpoint, it must also collide with our First Amendment doctrine. The Government does not argue otherwise. In briefs and oral argument, the Government offers a theory for upholding the bar if it is viewpoint-neutral (essentially, that the bar would then be a reasonable condition on a government benefit). See Brief for Petitioner 14–26. But the Government agrees that under *Tam* it may not

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“deny registration based on the views expressed” by a mark. Tr. of Oral Arg. 24. “As the Court’s *Tam* decision establishes,” the Government says, “the criteria for federal trademark registration” must be “viewpoint-neutral to survive Free Speech Clause review.” Pet. for Cert. 19. So the key question becomes: Is the “immoral or scandalous” criterion in the Lanham Act viewpoint-neutral or viewpoint-based?

It is viewpoint-based. The meanings of “immoral” and “scandalous” are not mysterious, but resort to some dictionaries still helps to lay bare the problem. When is expressive material “immoral”? According to a standard definition, when it is “inconsistent with rectitude, purity, or good morals”; “wicked”; or “vicious.” Webster’s New International Dictionary 1246 (2d ed. 1949). Or again, when it is “opposed to or violating morality”; or “morally evil.” Shorter Oxford English Dictionary 961 (3d ed. 1947). So the Lanham Act permits registration of marks that champion society’s sense of rectitude and morality, but not marks that denigrate those concepts. And when is such material “scandalous”? Says a typical definition, when it “giv[es] offense to the conscience or moral feelings”; “excite[s] reprobation”; or “call[s] out condemnation.” Webster’s New International Dictionary, at 2229. Or again, when it is “shocking to the sense of truth, decency, or propriety”; “disgraceful”; “offensive”; or “disreputable.” Funk & Wagnalls New Standard Dictionary 2186 (1944). So the Lanham Act allows registration of marks when their messages accord with, but not when their messages defy, society’s sense of decency or propriety. Put the pair of overlapping terms together and the statute, on its face, distinguishes between two opposed sets of ideas: those aligned with conventional moral standards and those hostile to them; those inducing societal nods of approval and those provoking offense and condemnation. The statute favors the former, and disfavors the latter. “Love rules”? “Always be good”? Registration follows. “Hate rules”? “Always be cruel”? Not according to the Lanham Act’s “immoral or scandalous” bar.

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The facial viewpoint bias in the law results in viewpoint-discriminatory application. Recall that the PTO itself describes the “immoral or scandalous” criterion using much the same language as in the dictionary definitions recited above. See *supra*, at 391–392. The PTO, for example, asks whether the public would view the mark as “shocking to the sense of truth, decency, or propriety”; “calling out for condemnation”; “offensive”; or “disreputable.” Brief for Petitioner 6 (internal quotation marks omitted). Using those guideposts, the PTO has refused to register marks communicating “immoral” or “scandalous” views about (among other things) drug use, religion, and terrorism. But all the while, it has approved registration of marks expressing more accepted views on the same topics. See generally Gilson & LaLonde, Trademarks Laid Bare, 101 Trademark Reporter 1476, 1510–1513, 1518–1522 (2011); Brief for Barton Beebe et al. as *Amici Curiae* 28–29.

Here are some samples. The PTO rejected marks conveying approval of drug use (YOU CAN’T SPELL HEALTHCARE WITHOUT THC for pain-relief medication, MARIJUANA COLA and KO KANE for beverages) because it is scandalous to “inappropriately glamoriz[e] drug abuse.” PTO, Office Action of Aug. 28, 2010, Serial No. 85038867; see Office Action of Dec. 24, 2009, Serial No. 77833964; Office Action of Nov. 17, 2009, Serial No. 77671304. But at the same time, the PTO registered marks with such sayings as D.A.R.E. TO RESIST DRUGS AND VIOLENCE and SAY NO TO DRUGS—REALITY IS THE BEST TRIP IN LIFE. See PTO, Reg. No. 2975163 (July 26, 2005); Reg. No. 2966019 (July 12, 2005). Similarly, the PTO disapproved registration for the mark BONG HITS 4 JESUS because it “suggests that people should engage in an illegal activity [in connection with] worship” and because “Christians would be morally outraged by a statement that connects Jesus Christ with illegal drug use.” Office Action of Mar. 15, 2008, Serial No. 77305946. And the PTO refused to register trademarks associating religious references with products (AGNUS DEI

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for safes and MADONNA for wine) because they would be “offensive to most individuals of the Christian faith” and “shocking to the sense of propriety.” *Ex parte Summit Brass & Bronze Works*, 59 USPQ 22, 23 (Dec. Com. Pat. 1943); *In re Riverbank Canning Co.*, 95 F. 2d 327, 329 (CCPA 1938). But once again, the PTO approved marks—PRAISE THE LORD for a game and JESUS DIED FOR YOU on clothing—whose message suggested religious faith rather than blasphemy or irreverence. See Reg. No. 5265121 (Aug. 15, 2017); Reg. No. 3187985 (Dec. 19, 2006). Finally, the PTO rejected marks reflecting support for al-Qaeda (BABY AL QAEDA and AL-QAEDA on t-shirts) “because the bombing of civilians and other terrorist acts are shocking to the sense of decency and call out for condemnation.” Office Action of Nov. 22, 2004, Serial No. 78444968; see Office Action of Feb. 23, 2005, Serial No. 78400213. Yet it approved registration of a mark with the words WAR ON TERROR MEMORIAL. Reg. No. 5495362 (June 19, 2018). Of course, all these decisions are understandable. The rejected marks express opinions that are, at the least, offensive to many Americans. But as the Court made clear in *Tam*, a law disfavoring “ideas that offend” discriminates based on viewpoint, in violation of the First Amendment. 582 U. S., at 223 (opinion of ALITO, J.); see *id.*, at 243–244; *id.*, at 248–249 (opinion of Kennedy, J.).

How, then, can the Government claim that the “immoral or scandalous” bar is viewpoint-neutral? The Government basically asks us to treat decisions like those described above as PTO examiners’ mistakes. See Brief for Petitioner 46. Still more, the Government tells us to ignore how the Lanham Act’s language, on its face, disfavors some ideas. In urging that course, the Government does not dispute that the statutory language—and words used to define it—have just that effect. At oral argument, the Government conceded: “[I]f you just looked at the words like ‘shocking’ and ‘offensive’ on their face and gave them their ordinary meanings[,] they could easily encompass material that was shock-

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ing [or offensive] because it expressed an outrageous point of view or a point of view that most members” of society reject. Tr. of Oral Arg. 6. But no matter, says the Government, because the statute is “susceptible of” a limiting construction that would remove this viewpoint bias. *Id.*, at 7 (arguing that the Court should “attempt to construe [the] statute in a way that would render it constitutional”). The Government’s idea, abstractly phrased, is to narrow the statutory bar to “marks that are offensive [or] shocking to a substantial segment of the public because of their *mode* of expression, independent of any views that they may express.” *Id.*, at 11 (emphasis added); see Brief for Petitioner 27–28. More concretely, the Government explains that this reinterpretation would mostly restrict the PTO to refusing marks that are “vulgar”—meaning “lewd,” “sexually explicit or profane.” *Id.*, at 27, 30. Such a reconfigured bar, the Government says, would not turn on viewpoint, and so we could uphold it.

But we cannot accept the Government’s proposal, because the statute says something markedly different. This Court, of course, may interpret “ambiguous statutory language” to “avoid serious constitutional doubts.” *FCC v. Fox Television Stations, Inc.*, 556 U. S. 502, 516 (2009). But that canon of construction applies only when ambiguity exists. “We will not rewrite a law to conform it to constitutional requirements.” *United States v. Stevens*, 559 U. S. 460, 481 (2010) (internal quotation marks and alteration omitted). So even assuming the Government’s reading would eliminate First Amendment problems, we may adopt it only if we can see it in the statutory language. And we cannot. The “immoral or scandalous” bar stretches far beyond the Government’s proposed construction. The statute as written does not draw the line at lewd, sexually explicit, or profane marks. Nor does it refer only to marks whose “mode of expression,” independent of viewpoint, is particularly offensive. Brief for Petitioner 28 (internal quotation marks omitted). It cov-

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ers the universe of immoral or scandalous—or (to use some PTO synonyms) offensive or disreputable—material. Whether or not lewd or profane. Whether the scandal and immorality comes from mode or instead from viewpoint. To cut the statute off where the Government urges is not to interpret the statute Congress enacted, but to fashion a new one.*

And once the “immoral or scandalous” bar is interpreted fairly, it must be invalidated. The Government just barely argues otherwise. In the last paragraph of its brief, the Government gestures toward the idea that the provision is salvageable by virtue of its constitutionally permissible applications (in the Government’s view, its applications to lewd, sexually explicit, or profane marks). See *id.*, at 47. In other words, the Government invokes our First Amendment overbreadth doctrine, and asks us to uphold the statute against facial attack because its unconstitutional applications are not “substantial” relative to “the statute’s plainly legitimate sweep.” *Stevens*, 559 U. S., at 473 (internal quotation marks omitted). But to begin with, this Court has never applied that kind of analysis to a viewpoint-discriminatory

*We reject the dissent’s statutory surgery for the same reason. Although conceding that the term “immoral” cannot be saved, the dissent thinks that the term “scandalous” can be read as the Government proposes. See *post*, at 409–410 (SOTOMAYOR, J., concurring in part and dissenting in part). But that term is not “ambiguous,” as the dissent argues, *post*, at 411; it is just broad. Remember that the dictionaries define it to mean offensive, disreputable, exciting reprobation, and so forth. See *supra*, at 394; *post*, at 410–411 (accepting those definitions). Even if hived off from “immoral” marks, the category of scandalous marks thus includes *both* marks that offend by the ideas they convey *and* marks that offend by their mode of expression. And its coverage of the former means that it discriminates based on viewpoint. We say nothing at all about a statute that covers only the latter—or, in the Government’s more concrete description, a statute limited to lewd, sexually explicit, and profane marks. Nor do we say anything about how to evaluate viewpoint-neutral restrictions on trademark registration, see *post*, at 421–424—because the “scandalous” bar (whether or not attached to the “immoral” bar) is not one.